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2019.12.30

Amending Acts

1. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16
2. Postal (First Amendment) Act, 2030 2030.12.11
3. Judicial Administration Reform Act, 2031 2031.4.18
4. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
5. Postal (Second Amendment) Act, 2044 2044.7.1
6. Postal (Third Amendment) Act, 2045 2045.7.10
7. Act to Amend Some Nepal Acts Relating to Communications, 2047 2047.7.14
8. Judicial Administration Act, 2048 2048.2.16
9. Postal (Fourth Amendment) Act, 2050 2050.6.27

Ratification and Publication Dates

10. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7
11. Some Nepal Acts Amendment Act, 2072 2072.11.13
12. Act to Amend, Integrate, Adjust and Repeal Some Nepal Laws, 2074 2074.6.30
13. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 50 of the year 2019

An Act Made to Amend and Consolidate the Nepal Laws Relating to Posts

Preamble: Whereas, it is expedient to amend and consolidate the Nepal laws relating to posts to maintain the convenience of the general public,

Now, therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act under Article 93 of the Constitution of Nepal. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Postal Act, 2019".
(2) This Act shall apply throughout Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and shall also apply to Nepali citizens residing outside Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..
(3) Section 31, Section 32 and Chapter 8 shall come into force from the date specified by the Government of Nepal by notification published in the Nepal Gazette, and the other Sections shall come into force

immediately. By notification published in the Nepal Gazette dated 2022.12.26, Chapter 8 has been specified to commence from 2023.1.1. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Director General" means the Director General of the Postal Services Department of the Government of Nepal. This term also includes other officials exercising the powers of the Director General of that Department.

Amended by the Fourth Amendment.(b) "Regional Director" means the Regional Director of the Regional Postal Directorate, and this term also includes other officials exercising the powers of the Regional Director.

(c) "Postmaster" means the head employee of a post office, and this term also includes other employees exercising the powers of the Postmaster. (d) "Post Office" means a post office established by the

Government of Nepal, and this term also includes any house, building, room, vehicle or place used for the purposes of the post office and any letter box kept by the post office for depositing postal articles. (e)

"Employee of a Post Office" means any person employed in the work of a post office. (f) "Postal Article"

means letters, newspapers, periodicals, book post, sample packets, literature for the blind, parcels, and any article or thing that can be transmitted by post. (g) "Letter" includes letters, postcards and aerogrammes. (h)

"Inland Postal Article" means a postal article posted within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for delivery at an address within Nepal Omitted by the Republic

Strengthening and Some Nepal Laws Amendment Act, 2066.. (i) "Mail Bag" includes bags, boxes, parcels or other covers or envelopes in which postal articles are placed for conveyance when transmitted by post. (j)

"Postage" means the postage chargeable on postal articles transmitted by post. Amended by the First Amendment.(k) "Postage Stamp" means a stamp issued by the Government of Nepal to denote postage or

any other fee or amount chargeable on a postal article, and this term also includes an impression of a stamp affixed by printing, embossing, impressing or by a franking machine on any envelope, postcard or other article.

Added by the Second Amendment.(k1) "Postal Offence" means an offence punishable under this Act.

(l) In relation to any postal article, "in the course of transmission by post" means the period from the delivery of the postal article at a post office until it is delivered to the addressee, or returned to the sender, or disposed of under Chapter 7.

(m) In relation to any postal article, "delivery at a post office" means delivery to the person authorized in that behalf for the purpose of posting the postal article.

(n) In relation to any postal article, "delivery to the addressee" means delivery of the postal article at the home or office of the addressee, or to the addressee himself or herself, or to his or her servant or agent, or to any other person deemed by ordinary practice to be authorized to receive delivery of postal articles addressed to the addressee.

(o) "Prescribed" or "as prescribed" means prescribed or as prescribed by rules made under this Act. Chapter -2

Monopoly and Liability

3. Monopoly for Carrying Letters Vested in the Government of Nepal: Within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., in places where postal arrangements are conducted by the Government of Nepal, except as follows, the Government of Nepal shall have the monopoly for carrying letters and for conducting the business of receiving, collecting, sending, transmitting, delivering

letters and other related services for that purpose:

(a) Delivering a letter given by someone to be delivered to another person on the way, during a visit or journey, without taking any kind of wage, reward or profit, to the addressee.

(b) Sending a letter relating only to the business of the sender or addressee through a particular person, and

(c) Delivering a letter sent along with goods by water, land or air, relating only to those goods, without taking any kind of wage, reward or profit. Provided that nothing in this Section shall be deemed to authorize any person to collect letters of the kind mentioned in clauses (a), (b) or (c) for sending by means other than post.

Added by the First Amendment.(d) Sending or delivering Air Documents operated by air service. Added by the Fourth Amendment.3a.

License May Be Granted to Private Sector to Operate Postal Service: (1) Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may grant a license to any person or institution to operate postal services conducted under this Act, subject to prescribed conditions. (2) If a person or institution licensed under sub-section (1) fails to comply with the conditions to be observed, or does or causes to be done any act contrary to this Act or the rules made under this Act, such person or institution shall be liable to compensate for the loss caused and shall be punished with imprisonment for a term up to five years or a fine up to two thousand five hundred rupees or both, depending on the gravity of the offence. 4. Persons Not Allowed to Carry Letters: In places within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. where postal arrangements are conducted by the Government of Nepal, the owner of a vehicle carrying passengers or goods, or his or her employee or agent, is prohibited from delivering, or taking, collecting, carrying or giving to another any letters other than those relating only to the goods in his or her vehicle, for the purpose of delivery. 5. Government of Nepal Not Liable: Except as otherwise provided elsewhere in this Act, the Government of Nepal shall not be liable for loss, mis-delivery, delayed delivery or damage of postal articles in the course of transmission by post, and an employee of a post office shall also not be liable for the above matters except those caused by fraud or willful negligence. Added by the First Amendment.5a. Mail Transport to be Provided: If the Government of Nepal requests any person or institution operating a public transport service to transport mail, such person or institution shall mandatorily transport such mail, giving higher priority than to passengers or goods, and a reasonable fare shall be paid to the concerned person or institution for such transport. Added by the First Amendment.5b. Ferry Contractor to be Made to Undertake to Ferry Mail Free of Charge: (1) The office or institution authorized to grant ferry contracts under the prevailing Nepal law shall, when granting such contract, require the contractor to make an undertaking to ferry mail relating to the postal arrangements conducted by the Government of Nepal free of charge. (2) With respect to ferry contracts entered into before the commencement of this Act, the Government of Nepal may make separate arrangements with the contractor to provide for free ferrying of mail.

Added by the Second Amendment.5c. Timetable to be Followed: A person or institution operating a public transport service authorized to transport mail for transport fare charged by the Government of Nepal or free of charge shall, if a timetable for operating the transport service is prescribed by the Postal Services Department, operate in accordance therewith. Added by the Second Amendment.5d. Special Duty for Transporting Mail: If any difficulty arises in transporting mail according to the prescribed timetable, it shall be the duty of the concerned Amended by the Fourth Amendment. local administration, police and local municipality or Amended by Some Nepal Acts Amendment Act, 2072. rural municipality to provide necessary assistance. Chapter-3

Postage

6. Power to Prescribe Inland Postage: (1) The Government of Nepal may, by notification published in the Nepal Gazette, prescribe the postage and other fees chargeable on all types of postal articles sent by inland post, and may make rules regarding the conditions and restrictions for collecting such postage and fees.

(2) The Government of Nepal may, by notification published in the Nepal Gazette, specify which articles may be sent by inland post. 7. Power to Make Rules Regarding Payment of Postage and Other Fees: The Government of Nepal may make rules to provide for the following matters:

(a) which types of inland postal articles require prepayment of postage and the method thereof,

(b) supplementary postage chargeable on non-payment or short-payment of postage,

(c) where returned to the sender and supplementary fee chargeable therefor,

(d) supplementary fee chargeable for sending postal articles by special post, and

(e) special fee chargeable for sending postal articles by post within the prescribed time or on a public holiday.

Explanation: "Special Post" means mail sent by a special postman or special vehicle. Amended by the First Amendment. 8. Power of Government of Nepal to Prescribe Foreign Postage: (1) If the Government of Nepal has an agreement with a member state of the Universal Postal Union or any other foreign country for the exchange of postal articles by post, the postage and other fees chargeable for sending postal articles shall be determined on the basis of such agreement, and in the absence of an agreement, for member states on the basis of the Universal Postal Union Convention, and for other foreign countries not being member states on the basis of mutual understanding, and the Government of Nepal may, by notification published in the Nepal Gazette, prescribe them.

(2) The Government of Nepal may make rules regarding the conditions and restrictions for collecting the postage and fees prescribed under sub-section (1). 9.

Postage Payable by Addressee: (1) For a postal article for which postage or fees have not been prepaid or have been short-paid, the addressee taking delivery of such postal article shall pay the postage or other fees. Provided that if such postal article is returned unopened, the addressee shall not be liable to pay. Provided further that if the Controller believes that a postal article was sent without prepaying or with short payment of postage or other fees with a specific malicious intent to harass the addressee, he or she may waive such postage or fees. (2) If the addressee refuses to pay such postage or fees, or returns the postal article unopened, or dies, or cannot be found, the person sending the postal article shall pay such postage or fees. 10. Recovery of Postage or Other Amounts: If any person refuses to pay any amount due from him or her on account of postage or other fees, the Postmaster may recover such amount by using the procedure and powers applicable for recovering fines imposed under the prevailing Nepal law, and may withhold delivery of other postal articles (other than government articles) addressed to such person until the outstanding amount is paid. 11. Customs Duty Paid by Post Office to be Recovered like Postage: If a post office has paid the customs duty chargeable on any postal article received by post from outside Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., such amount shall be recovered from the concerned person like postage. 12. Post Office Seal to be Evidence: (1) In proceedings for the recovery of postage or other fees claimed to be recoverable under this Act in respect of any postal article: (a) A document bearing the seal of the post office stating that the addressee refused to accept delivery, or has died, or cannot be found, shall be taken as proof that the contents stated are true. (b) The person presumed

to have sent such article shall, unless the contrary is proved, be deemed to be the sender. (2) A document bearing the seal of the post office stating the amount of postage or other fees due on any postal article shall be taken as proof that the contents stated are true. Chapter-4 Postage Stamps 13. Power to Make Arrangements for Postage Stamps and Rules Relating Thereto: (1) All powers to make arrangements for and to introduce into circulation postage stamps of various types and values necessary for the purposes of this Act shall vest in the Government of Nepal.

Amended by the First Amendment.(2) For the purpose of sub-section (1), the Government of Nepal may specifically also make provisions for the following: (a) Prescribing the selling price of postage stamps, (b) Specifying the category of postal article for which postage or other fees are to be paid, (c) Specifying conditions under which postage stamps that are perforated, torn, defaced, or otherwise unfit for use, (d) Regularizing the custody, sale, distribution and use of postage stamps, (e) Specifying non-government persons authorized to sell postage stamps and the conditions and restrictions to be observed by them, (f) Prescribing the duties and remuneration of non-government persons selling postage stamps, (g) Introducing international reply coupons and prescribing their exchange rate, (h) Selling stamps received from the United Nations for sale. Chapter-5 Conditions for Transmission of Postal Articles 14. Power to Make Rules Regarding Registered Newspapers and Periodicals: (1) The Government of Nepal may make rules regarding the registration of newspapers and periodicals for transmission by inland post and the fees chargeable for registration. (2) For the purpose of registration, every publication of the following description, wholly or predominantly consisting of Amended by the First Amendment.current news and other related articles, with or without advertisements, shall be deemed to be a newspaper or periodical: (a) Published periodically at intervals of 32 days or less, and (b) Having a genuine list of subscribers. (3) A supplement or special edition issued on the same date along with a newspaper or periodical shall also be deemed to be an issue of the newspaper or periodical. Provided that if such supplement or special edition does not, like the newspaper or periodical, wholly or predominantly consist of Amended by the First Amendment.current news and other related articles, with or without advertisements, and does not bear the name and date of the newspaper or periodical printed at the head of each page, such supplement or special edition shall not be deemed to be an issue of the newspaper or periodical. Explanation: Nothing contained in this Section or the rules made under this Section shall be deemed to compel newspapers or periodicals to be sent by inland post. 15.

Return of Postal Articles to Sender: (1) The Government of Nepal may make rules to provide for the return of postal articles in the course of transmission by post to the sender, subject to the consent of the addressee and other prescribed conditions. (2) No person shall be entitled to demand the return of a postal article after it has been sent by post, except as provided in rules made under sub-section (1). 16. Prohibited Articles for Transmission by Post: (1) The following articles are prohibited from transmission by post: (a) Explosive, dangerous, repulsive, unhygienic or harmful substances, sharp-edged or pointed weapons without proper packing, or other articles or living things which, by their nature, may cause harm to other postal articles or employees of a post office during transmission, (b) Postal articles containing obscene, defamatory, indecent, seditious, provocative or peace-disturbing words, signs or shapes, (c) Newspapers, periodicals, books or other writings whose publication is prohibited by the prevailing Nepal law relating to printing and publishing, (d) News, periodicals edited, printed or published without complying with the procedures under the prevailing Nepal law relating to printing and publishing, Added by the First Amendment. (e) Articles prohibited from transmission by post by the country to which they are to be sent, Amended by the First Amendment. (f) Postal articles prohibited from transmission by post by any other prevailing Nepal law or by rules made under this Act. Added by the Fourth Amendment.16a. Articles Not to be Sent by Ordinary Post: No person shall send cash, cheques, drafts, hundis or other similar articles by ordinary post. If any such article is sent by

ordinary post and such article is lost or damaged, the post office shall not be liable therefor. 17.

Power to Make Rules Regarding Transmission of Postal Articles: Amended by the First Amendment. (1) The Government of Nepal may make rules regarding the transmission or delivery of postal articles by post. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular provide for the following: (a) Articles prohibited for transmission by post, (b) Conditions subject to which articles may be transmitted by post, (c) Detention and disposal of articles transmitted by post contrary to this Act, (d) Taking or giving receipts or certificates upon posting or delivery of postal articles and the additional fee chargeable for such receipt or certificate, Amended by the First Amendment. (e) Regularizing the envelopes and covers of postal articles, their format, size, maximum weight and the articles to be enclosed, and regularizing the use of such postal articles, Added by the First Amendment. (f) Making provisions for post boxes and prescribing the fee for their use, Added by the First Amendment. (g) Granting the facility of closed mail bags and prescribing the fee therefor, Added by the Fourth Amendment. (h) Operating domestic and foreign diplomatic mail services. (3) The time and manner of posting postal articles shall be as prescribed by the Director General by order from time to time. Amended by the Second Amendment.18. Delivery of Postal Articles after Recovering Customs Duty: (1) If a post office suspects that a postal article received from abroad contains any article chargeable with customs duty, it may detain delivery of such postal article. (2) The Postmaster shall open the postal article detained under sub-section (1) in the presence of the local customs officer, and if any article chargeable with customs duty is found, shall have the customs duty leviable under the prevailing law determined, and shall deliver the postal article after such amount is paid or after a receipt showing payment to the local customs office is presented by the person entitled to delivery by post.

Added by the Fourth Amendment. (2a) After the Postmaster and the local customs officer have opened the detained goods in the presence of the recipient and determined the customs duty, they shall also sign the post office's account records.

(3) If a postal article chargeable with customs duty cannot be delivered, or if the recipient does not wish to take delivery, or if it is not required to be returned to the sender, or if the recipient does not come to take delivery within forty-five days of notice, the post office shall sell such postal article by auction and credit the proceeds to revenue. Amended by the Second Amendment.19. Action Regarding Goods Prohibited for Export or Import: If there is suspicion that any goods prohibited for export or import, under the prevailing law, into or out of Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. are being exported or imported by post, the officer authorized by the Government of Nepal shall have the power to detain such goods or mail and search or cause to be searched therefor. Such goods prohibited for export or import found upon search shall be handed over to the officer authorized under the prevailing law for necessary legal action. 20. Power to Use for Public Interest: (1) In case of any public emergency or if necessary for public peace and security, the Government of Nepal, or any officer authorized by the Government of Nepal for that purpose, may, by written order, direct the detention or disposal of any particular postal article or any particular class of postal articles in the course of transmission by post, as specified in that order.

(2) If any question arises as to whether any public emergency has occurred or whether any action taken under sub-section (1) is for public peace and security, a certificate given by the Government of Nepal in that regard shall be conclusive. 21.

Power to Deal with Postal Articles Bearing Forged or Used Stamps: Amended by the First Amendment. (1) If any postal article bearing a forged stamp or a stamp that has already been used is received by post, the

concerned Postmaster shall fix a date and send a written notice to the addressee, stating that he or she should appear in person or send a representative to the post office to take the article within that period. (2) If the addressee or his or her representative appears at the post office within the period and agrees to hand over to the Postmaster the part bearing the forged or used stamp and indicating the name and address of the sender, such postal article shall be delivered to the addressee or his or her representative. (3) If the addressee or his or her representative does not appear within the period, or appears but does not agree to hand over the relevant part of the postal article as required under sub-section (2), such postal article shall not be delivered to the addressee or his or her representative but shall be disposed of in the manner prescribed by the Director General. Explanation: For the purpose of this Section, "Postage Stamp" includes postage stamps of foreign countries. 22. Power to Detain Newspapers, Periodicals and Other Articles: (1) The concerned Amended by the Fourth Amendment. Postmaster shall have the power to detain, in the course of transmission by post, any newspaper, periodical, book or other writing suspected to be prohibited for transmission by post under Section 16. (2) The concerned Amended by the Fourth Amendment. Postmaster shall hand over the postal article detained under sub-section (1) to the concerned officer designated by the Government of Nepal, and the officer shall give notice of the detention to the addressee. (3) The officer authorized by the Government of Nepal, upon examination, if it appears that the article contains any newspaper, periodical, book or other writing prohibited as aforesaid, may pass such order as he or she deems fit; and if it does not appear so, and if it is not required to be seized under any other prevailing Nepal law, such postal article shall be released.

Provided that,

(a) Any person having an interest in the postal article so detained may, within 2 months from the date of detention, submit a petition to the Amended by the Fourth Amendment. officer authorized by the Government of Nepal for the release of such article, and such officer may, after considering the petition, pass such order as he or she deems fit.

(b) If any petition for the release of the detained postal article is rejected, the petitioner may, within 2 months from the date of receipt of the notice of the rejection order, file a petition in the Amended by Some Nepal Acts Amendment Act, 2072. District Court for the release of the postal article, and the petition to the Amended by Some Nepal Acts Amendment Act, 2072. District Court must be based on the ground that the detained postal article did not contain any newspaper, periodical, book or other writing prohibited under Section 16. 23. Repealed by the Judicial Administration Reform (First Amendment) Act, 2033

24. Restriction on Jurisdiction: No question shall be raised in any court in respect of any order passed or action taken under Section 22, except as provided in the proviso clause (b) of sub-section (3) of that Section. Chapter-6

Registration, Insurance and Value-Payable Post

25. Registration of Postal Articles: A person sending postal articles by post may, subject to the provisions contained elsewhere in this Act, have such postal article registered and obtain a receipt therefor. The Government of Nepal may, by notification published in the Nepal Gazette, prescribe the additional fee chargeable for registration over and above the postage chargeable for ordinary post. 26. Power to Make Rules Regarding Registration: (1) The Government of Nepal may make rules regarding the registration of postal articles.

(2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular

provide for the following:

(a) Matters required to be registered,

(b) Manner of paying the fee for registration, and

(c) Double fee chargeable upon delivery to the addressee or return to the sender of a postal article required to be registered but posted without prepayment of the fee. Added by the First Amendment.(d) The manner of tracing a lost registered article and the amount of compensation payable for such loss.

(3) After postal articles posted for registration have been registered, they shall be delivered to the addressee or returned to the sender at the time and in the manner prescribed by the Director General by order issued from time to time. 27.

Insurance of Postal Articles: The Government of Nepal may, by notification published in the Nepal Gazette from time to time, give directions for the following: (a) Insurance of postal articles, subject to the provisions contained elsewhere in this Act, at the concerned post office against the risk of loss or damage in the course of transmission by post, and issue of a receipt therefor by the post office to the person posting, and (b) Additional fee chargeable for insurance as specified in that notification. 28. Power to Make Insurance of Postal Articles Compulsory: The Government of Nepal may, by notification published in the Nepal Gazette from time to time, make insurance compulsory for postal articles specified in that notification, and may direct that if a postal article for which insurance is compulsory is posted without insurance, it shall be delivered to the addressee or returned to the sender only upon charging the special fee specified in that notification. Provided that the Government of Nepal shall not incur any liability in respect of such postal articles by reason of having collected such fee. 29. Power to Make Rules Regarding Insurance: (1) The Government of Nepal may make rules regarding insurance. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular provide for the following: (a) Types of postal articles that may be insured under Section 27, (b) Maximum amount for which insurance may be taken, (c) Manner of paying the insurance fee, and (d) Payment of compensation for insured postal articles. (3) After postal articles deposited at a post office for insurance have been insured, they shall be delivered and registered at the place, time and in the manner prescribed by the Director General by order issued from time to time. 30. Liability of Government of Nepal in Respect of Insured Postal Articles: Subject to prescribed conditions and restrictions, if an insured postal article or any thing contained therein is lost or damaged in the course of transmission by post, the Government of Nepal shall be liable to pay or cause to be paid compensation to the sender up to the amount for which such postal article was insured, but not exceeding that amount. Provided that in no case shall compensation be paid exceeding the actual value of the lost or damaged article. 31.

Transmission of Value-Payable Postal Articles: The Government of Nepal may, by notification published in the Nepal Gazette from time to time, make provisions as follows: (a) Subject to the provisions contained elsewhere in this Act, the person sending a postal article by post may have the amount written on such article collected from the addressee before delivery of the postal article, and the amount so collected shall be paid to the sender, and (b) The fee payable by the sender therefor. Provided that if the amount of the value-payable article is not recovered from the addressee, the Government of Nepal shall not incur any liability. Postal articles sent under this Section shall be called value-payable postal articles. 32. Power to Make Rules Regarding Value-Payable Postal Articles: (1) The Government of Nepal may make rules regarding the transmission of value-payable postal articles by post. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular provide for the following: (a) Types of postal articles that may be sent as value-payable, (b) No postal article shall be allowed to be sent as value-payable unless

the sender declares that it is being sent under a genuine order, (c) Maximum amount collectable upon delivery of a value-payable postal article, (d) Format of the declaration form to be filled by the sender and the time and manner of paying the fee, (e) Provision for refunding to the addressee any amount collected upon delivery of a value-payable postal article if fraud is discovered in respect of such amount, and (f) Prescribing the fee for inquiry into complaints regarding delivery of value-payable postal articles or payment of the value thereof. (3) The name of the post office where a postal article may be posted for sending as value-payable, the time and the procedure to be followed, and the name of the post office for delivery of value-payable postal articles, the time and manner thereof, shall be as prescribed by the Director General by order issued from time to time. (4) No suit, complaint or legal proceedings shall lie against the Government of Nepal or any employee of a post office in respect of any act done under any rule made under clause (e) of sub-section (2) of this Section, or done in good faith believing it to be done under such rule. 33.

Power to Give Effect to Arrangements with Other Countries: (1) The Government of Nepal may make rules to give effect to any arrangement entered into between Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and other foreign countries, or to the Universal Postal Union Convention, regarding the exchange of postal articles by ordinary post, registered, insured or value-payable post. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular provide for the following: (a) The format of the declaration form to be filled by the sender when posting and by the addressee when taking delivery of postal articles as mentioned in sub-section (1), and the procedure to be followed, and (b) The fees chargeable for sending postal articles as mentioned in sub-section (1).

Chapter- 7 Undelivered Postal Articles 34. Power to Make Rules Regarding Disposal of Undelivered Postal Articles: (1) The Government of Nepal may make rules regarding the disposal of postal articles which, for any reason, cannot be delivered. (2) Without prejudice to the generality of the power conferred by sub-section (1), such rules may in particular provide for the following: (a) The period for which undelivered postal articles shall be retained at the post office, and (b) Publication of lists of undelivered postal articles. (3) After an undelivered postal article has been retained at the post office for the 46.

Punishment for Stealing, Misappropriating, Suppressing, Destroying, or Throwing Away Postal Articles, etc.: Amended by the Second Amendment.(1) If an employee of a post office, or a person or entity engaged in mail transport, or any other person, steals, extracts, throws away, misappropriates, destroys, or suppresses for any purpose, or causes damage to, mail, bags, or postal articles, or any goods or articles contained therein, while in the course of dispatch by post, such person shall be liable to recover the value of the loss and shall be punished with imprisonment for a term up to five years Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to fifty thousand rupees, or both.

(2) If an employee assigned to receive postal articles brought for posting at a post office for dispatch by post, in exchange for money, promises to affix stamps on a postal article but fails to do so, thereby misappropriating the money taken, whether within the office or elsewhere, such person shall be liable to make good the amount so misappropriated and shall be punished with Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074.imprisonment for a maximum term of one year or a fine of up to ten thousand rupees, or both. 47. **Punishment for Opening, Detaining, Delaying Transport or Delivery of Postal Articles:** If a post office employee, contrary to duty, opens or causes to be opened, knowingly detains or causes to be detained, delays the transport or causes to be transported late, or delays the delivery or causes to be delivered late, any postal article while in the course of dispatch by post, such person shall be punished with imprisonment for a maximum term of one year Amended by the Act

Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to ten thousand rupees, or both. Provided that nothing in this section shall apply to the opening, detention, or delay in transport or delivery of any postal article done under the authority conferred by this Act, or in accordance with a written order of the Government of Nepal, or under the directions of a competent court. 47A. Punishment for Obstruction of Mail Transport: Added by the Second Amendment.If any person obstructs or opposes the transport of mail according to the prescribed schedule, such person shall be liable to a fine of up to two thousand rupees Amended by the Fourth Amendment.. 48.

Punishment for Overcharging Postage and Counterfeiting Government Stamps: If a post office employee commits any of the following offences, such person shall be punished with imprisonment for a maximum term of one year Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to ten thousand rupees, or both: (a) Forging a false government stamp on a postal article, or (b) Fraudulently tampering with, removing, or erasing a government stamp affixed to a postal article, or (c) Being entrusted with the delivery of a postal article, knowingly demanding or receiving any amount for postage not chargeable under this Act on that article. 49. Punishment for Forging, Tampering with, Suppressing, or Destroying Post Office Documents: Amended by the Fourth Amendment.If any person, by forgery, wrongfully prepares, tampers with, suppresses, or destroys any document, such person shall be punished with imprisonment for a maximum term of two years Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to twenty thousand rupees, or both. 50. Punishment for Fraudulently Sending Unpaid Postal Articles: If a post office employee, with fraudulent intent, dispatches by post or places in a mail bag any postal article on which postage is payable but has not been paid or collected in the manner prescribed under this Act, such person shall be punished with imprisonment for a maximum term of two years Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to twenty thousand rupees, or both. 51. Punishment for Violating Section 3: (1) If any person commits any of the following offences, such person shall be liable to a fine of up to NRs.

Twenty-five for each letter involved in the offence: (a) Conveying a letter within the exclusive privilege of the Government of Nepal under Section 3 by a means other than post, or (b) Doing any other act connected with the conveyance of any such letter within the exclusive privilege by a means other than post, or (c) Sending, delivering for sending, or delivering any such letter within the exclusive privilege by a means other than post, or (d) Collecting letters as described in clauses (a), (b) or (c) of Section 3 for sending by a means other than post. (2) If any person, after having been convicted of an offence punishable under this section, again commits the same offence, such person shall be liable to a fine of up to NRs. Fifty for each such offence. 52. Punishment for Violating Section 4: (1) If any person, in violation of Section 4, conveys, receives, delivers for sending, or delivers letters, such person shall be liable to a fine of up to NRs. Fifty for each such letter. (2) If any person, after having been convicted of an offence punishable under this section, repeatedly commits the same offence, such person shall be liable to a fine of up to NRs. Two hundred for each such offence. 53. Punishment for Violating Rules Made under Section 13: (1) If a person appointed to sell postage stamps sells a postage stamp at a price higher than that prescribed by any rule made under clause (a) of sub-section (2) of Section 13, Amended by the Second Amendment.the excess amount so charged shall be recovered from such person, and such person shall be liable to a fine of up to one thousand rupees. (2) If any person violates any other rule made under Section 13, such person shall be liable to a fine of up to NRs. Two hundred. 54.

Punishment for Violating Section 16 or Section 17: (1) If any person, in violation of Section 16 or Section 17, sends or delivers for sending any postal article or other article by post, such person shall be punished with

imprisonment for a maximum term of one year Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to ten thousand rupees, or both. (2) Notwithstanding that the postal article is detained in the post office upon being accused of having been sent in violation of the matters mentioned in Section 16 or Section 17, the sender shall not be precluded from taking any action based on the assumption that delivery of the article was made in due course. 55. Punishment for Damaging a Letter Box: If any person places fire, matches, a lamp, or explosive, dangerous, dirty, foul-smelling, or harmful substances, or liquids, in a letter box placed by a post office for depositing postal articles, or makes a mess in the letter box, or does any act likely to cause damage to any part of the letter box or the articles contained therein, Amended by the Fourth Amendment.such person shall be made to repair the damaged letter box and shall be liable to a fine of up to five hundred rupees. 56. Punishment for Defacing a Post Office or Letter Box: If any person defaces a post office or a letter box placed by a post office for depositing postal articles by affixing, placing, or painting any advertisement, notice, poster, writing, board, or any other article, or by applying paint or in any other manner, Amended by the Fourth Amendment.such person shall be made to repair the defaced letter box and shall be liable to a fine of up to five hundred rupees. 57. Punishment for Submitting False Statements: If any person required to fill out a statement regarding any postal article dispatched by post, or any article contained therein, or its value, knowingly submits any false statement, such person shall be liable to a fine of up to Amended by the Second Amendment.one thousand rupees. 58.Amended by the Second Amendment.

Punishment for Detaining or Opening Mail, or Allowing Mail Bags to Get Wet, or Delaying Transfer: If any person, otherwise than under this Act or under an order of the Government of Nepal or of a competent authority or court, while mail, bags, or postal articles are in the course of dispatch by post, stops for any reason or opens them before they reach the specified destination, or allows mail bags to get wet, or obstructs or opposes an employee engaged in the transfer of mail or postal articles, such person shall be punished with imprisonment for a term up to three months Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to five thousand rupees, or both. 59. Punishment for Retaining a Misdelivered Postal Article or Mail Bag: If any person, by fraud, retains or knowingly suppresses, throws away, detains, or fails to return, or refuses to return any postal article or mail bag addressed to another person which came into their possession in the course of dispatch by post, upon the order of a post office employee, such person shall be liable to a fine of up to Amended by the Second Amendment.two thousand rupees. 60. Punishment for Obstructing Delivery of a Letter: If any person, with specific malice to harm another person, opens or causes to be opened any letter intended for that person, or in any manner obstructs the delivery thereof, such person shall be liable to a fine of up to Amended by the Second Amendment.one thousand rupees. Provided that this section shall not apply if the addressee is a minor or under the guardianship of another person and the father, mother, or guardian of such addressee does any of the above acts. 61. Punishment for Erasing the Content of a Document Bearing a Postage Stamp or Removing a Postage Stamp from a Document: If any person, fraudulently or with intent to cause loss to the Government of Nepal, for the purpose of using a postage stamp affixed to a document on another document, erases the content of the document or removes the postage stamp itself, such person shall be punished with imprisonment for a maximum term of three years Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. or a fine of up to thirty thousand rupees, or both. 61A.Added by the Second Amendment.

Punishment for Removing Postage Stamps: If a post office employee or a person engaged in mail transport steals, removes, throws away, or in any manner destroys a postage stamp affixed to a postal article representing postage, such person shall be liable to recover the value of such stamp and shall be fined up to

one thousand rupees. 62. Punishment for Using a Previously Used Postage Stamp: If any person, fraudulently or with intent to cause loss to the Government of Nepal, uses a postage stamp knowing it to have been previously used, Amended by the First Amendment. the amount of loss caused to the Government of Nepal shall be recovered from such person, and Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. such person shall be punished with imprisonment for a term up to one year and a fine of up to ten thousand rupees. 63. Punishment for Erasing a Government Mark on a Postage Stamp: If any person, fraudulently or with intent to cause loss to the Government of Nepal, erases a government mark affixed to indicate that a postage stamp has been used and cancelled, or retains or sells a postage stamp from which such government mark has been erased, Deleted by the First Amendment such person shall be punished with Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. imprisonment for a term up to one year and a fine of up to ten thousand rupees. 64. Amended by the First Amendment. Additional Punishment for Offences Relating to Postage Stamps or Postal Articles: If any person commits theft, robbery, forgery, or fraud in respect of postage stamps, postal orders, or reply coupons, or postal articles in the course of dispatch by post or any article contained therein, such person shall, in addition to the punishment provided by the prevailing Nepal law for such offence, be punished with imprisonment for a term up to one year or a fine of up to one thousand rupees, or both. 65. Punishment for Attempting or Abetting an Offence: Any person who attempts or abets the commission of an offence punishable under this Act shall be punished with the same punishment as that prescribed for the offence. 66. Proof of Property of Post Office Sufficient: In any prosecution for an offence concerning a postal article or mail bag sent by post, it shall be sufficient to prove that the article is the property of the post office, whether the article is valuable or not. 67. Cases under this Act to be Government Cases: In any case relating to an offence punishable under this Act, the Government of Nepal shall be the plaintiff.

68. Repealed by the Judicial Administration Improvement (Fourth Amendment) Act, 2043. 68A. Added by the Second Amendment. Jurisdiction to Hear Cases: (1) The relevant Regional Director shall have the authority to conduct proceedings and adjudicate cases concerning offences punishable under Sections 43, 44, 45, 47A, 51, 52, 53, 55, 56, 57, 59, 60, Amended by the Act Amending, Consolidating, Adjusting and Repealing Certain Nepal Laws, 2074. and 61A. (2) The officer hearing cases under sub-section (1) shall have the same powers as a District Court. (3) Amended by the Third Amendment. An appeal against a decision made by the Regional Director under sub-section (1) shall lie to the High Court of the province where the relevant Post Directorate is located Amended by the Act Amending Certain Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.. (4) If, during the proceedings of a postal offence case filed before a District Court, it appears that the accused has also committed any offence related to the sections mentioned in sub-section (1), the District Court may also conduct proceedings and adjudicate on such offence. (5) If, during an investigation into a postal offence, it appears that a single person has committed more than one offence, or that different persons have committed separate offences in relation to the same postal article, and the jurisdiction to hear those offences falls within the respective jurisdictions of different Regional Directors, then the authority to conduct proceedings and adjudicate on those offences shall lie with the Regional Director of the region where the post office delivering such postal article is located Amended by the Third Amendment. (6) If, among the various postal offences committed by a single person or the various offences committed by different persons in relation to the same postal article, the jurisdiction to hear some offences falls within the jurisdiction of a Regional Director and the jurisdiction to hear other offences falls within the jurisdiction of a District Court, then the authority to hear the cases concerning those offences shall lie with the District Court of the district where such postal article is delivered. 68B. Repealed by the Fourth Amendment. Chapter - 10 Miscellaneous 69. Power to Make Additional Rules: The Government of Nepal may make

additional rules for the implementation of this Act, and may provide that any violation of those rules shall be punishable with a fine of up to Amended by the Fourth Amendment.five hundred rupees. 70.Added by the Second Amendment.